Some Laws Protecting Women:

1. Expanded Breastfeeding Promotion Act of 2009 (R.A. No. 10028)
2. Women in Development and Nation Building Act (R.A. No. 7192)
3. Magna Carta for Women (R.A. No. 9710)
4. Anti-Sexual Harassment Act (R.A. No. 7877)
5. Safe Spaces Act (R.A. No. 11313)
6. Violence Against Women and their Children (R.A. No. 9262)

Expanded Breastfeeding Promotion Act of 2009 (R.A. No. 10028)

1. Mandatory Lactation Stations
2. Prohibition on Infant Formula Marketing
3. Compensable Lactation Breaks
4. Workplace Breastfeeding Policies
5. Breastmilk Banks
6. Tax Incentives

Milk Bank

- The health institution adopting rooming-in and breastfeeding shall provide equipment, facilities, and supplies for breastmilk collection, storage, and utilization, the standards of which shall be defined by the Department of Health.
- Health institutions are likewise encouraged to set up milk banks for storage of breastmilk donated by mothers and which have undergone pasteurization.
- The stored breast milk will primarily be given to children in the neonatal intensive care unit whose own mothers are seriously ill.

Mandatory Lactation Stations

- All health and non-health facilities, establishments, or institutions shall establish lactation stations
- The lactation station shall not be located in the toilet

Lactation stations shall be provided with the following necessary facilities:

1. Lavatory for hand-washing, unless there is an easily accessible lavatory nearby
2. Refrigeration or appropriate cooling facilities for storing expressed breast milk
3. Electrical outlets for breast pumps
4. A small table
5. Comfortable seats
6. Other items

Prohibition on Infant Formula Marketing

- All health and non-health facilities, establishments or institutions shall take strict measures to prevent any direct or indirect form of promotion, marketing or sales of infant formula or breastmilk substitutes within the same lactation stations, or in any event which may be conducive to the same

Compensable Lactation Periods

- Nursing employees shall be granted break intervals in addition to the regular time-off for meals to breastfeed or express milk
- Such intervals, which include the time it takes to get to and from the workplace lactation station, shall be counted as compensable hours worked
- Such intervals shall not be less than 40 minutes for every 8-hour working period

Tax Incentive

- The expenses incurred by a private health and non-health facility, establishment or institution shall be deductible expenses for income tax purposes up to twice the actual amount incurred
- The deduction shall apply for the taxable period when the expenses were incurred
- Such facilities, establishments or institutions shall secure a "Working Mother-Baby-Friendly Certificate" from the Department of Health to be filed with the Bureau of Internal Revenue, before they can avail of the incentive.

Women in Development and Nation Building Act (R.A. No. 7192)

1. Foreign Aid and Development Funds
2. Equal Legal and Contractual Capacity
3. Passports and Travel Documents
4. Agrarian Reform and Resources
5. Military and Education Access

Foreign Aid and Development Funds

- The National Economic and Development Authority (NEDA) shall primarily be responsible for ensuring the participation of women as recipients in foreign aid, grants and loans. It shall determine and recommend the amount to be allocated for the development activity involving women.
- The National Economic and Development Authority (NEDA) and other agencies must allocate a substantial portion of Official Development Assistance (ODA) and foreign aid funds to support women's and gender-responsive programs.

Mandate of NEDA under R.A. No. 7192:

1. Formulate and prioritize rural or countryside development programs or projects, provide income and employment opportunities to women in the rural areas and thus, prevent their heavy migration from rural to urban or foreign countries
2. Include an assessment of the extent to which their programs and projects integrate women in the development process and of the impact of said programs or projects on women, including their implications in enhancing the self-reliance of women in improving their income

3. Ensure the active participation of women and women's organizations in the development programs and/or projects including their involvement in the planning, design, implementation, management, monitoring and evaluation thereof
4. Collect sex-disaggregated data and include such data in its program or project paper, proposal or strategy
5. Ensure that programs and projects are designed so that the percentage of women who receive assistance is approximately proportionate to either their traditional participation in the targeted activities or their proportion of the population, whichever is higher.
6. Assist women in activities that are of critical significance to their self-reliance and development.

Equal Legal and Contractual Capacity

- Women of legal age, regardless of civil status, shall have the capacity to act and enter into contracts which shall in every respect be equal to that of men under similar circumstances.
- In all contractual situations where married men have the capacity to act, married women shall have equal rights.

Capacity of Women under R.A. No. 7192:

1. Women shall have the capacity to borrow and obtain loans and execute security and credit arrangement under the same conditions as men
2. Women shall have equal access to all government and private sector programs granting agricultural credit, loans and non-material resources and shall enjoy equal treatment in agrarian reform and land resettlement programs
3. Women shall have equal rights to act as incorporators and enter into insurance contracts
4. Married women shall have rights equal to those of married men in applying for passports, securing visas and other travel documents, without need to secure the consent of their spouses

Club Membership

- Women shall enjoy equal access to membership in all social, civic and recreational clubs, committees, associations and similar other organizations devoted to public purpose
- They shall be entitled to the same rights and privileges accorded to their spouses if they belong to the same organization.

Military and Education Access

- Women shall be accorded equal opportunities for appointment, admission, training, graduation, and commissioning in all military or similar schools of the Armed Forces of the Philippines and the Philippine National Police in accordance with the standards required for men, except for those minimum essential adjustments required by physiological differences between sexes.

Magna Carta for Women (R.A. No. 9710)

1. Protection from Violence
2. Women Affected by Disasters, Calamities, and Other Crisis Situations
3. Equal Access and Elimination of Discrimination in Education, Scholarships, and Training
4. Women in Sports
5. Nondiscriminatory and Nonderogatory Portrayal of Women in Media and Film
6. Equal Rights in All Matters Relating to Marriage and Family Relations

Protection from Women

- The State shall ensure that all women shall be protected from all forms of violence as provided for in existing laws
- Agencies of government shall give priority to the defense and protection of women against gender-based offenses and help women attain justice and healing.

Women Affected by Disasters, Calamities, and Other Crisis Situations

- Women have the right to protection and security in times of disasters, calamities, and other crisis situations especially in all phases of relief, recovery, rehabilitation, and construction efforts
- The State shall provide for immediate humanitarian assistance, allocation of resources, and early resettlement, if necessary.
- It shall also address the particular needs of women from a gender perspective to ensure their full protection from sexual exploitation and other sexual and gender- based violence committed against them.

Women in Sports

- The State shall develop, establish, and strengthen programs for the participation of women and girl-children in competitive and noncompetitive sports as a means to achieve excellence, promote physical and social well-being, eliminate gender-role stereotyping, and provide equal access to the full benefits of development for all persons regardless of sex, gender identity, and other similar factors.
- Schools, colleges, universities, or any other learning institution shall take into account its total women student population in granting athletic scholarships.

Nondiscriminatory and Nonderogatory Portrayal of Women in Media and Film

- Raise the consciousness of the general public in recognizing the dignity of women and the role and contribution of women in the family, community, and society through the strategic use of mass media.
- The State shall ensure allocation of space, airtime, and resources, strengthen programming, production, and image-making that appropriately present women's needs, issues, and concerns in all forms of media, communication, information dissemination, and advertising.

Equal Rights in All Matters Relating to Marriage and Family Relations

1. The same rights to enter into and leave marriages or common-law relationships referred to under the Family Code without prejudice to personal or religious beliefs
2. The same rights to choose a spouse freely and to enter into marriage only with their free and full consent. The betrothal and the marriage of a child shall have no legal effect
3. The joint decision on the number and spacing of their children and to have access to the information, education and means to enable them to exercise these rights
4. The same personal rights between spouses or common-law spouses, including the right to choose a profession and an occupation freely
5. The same rights for both spouses or common-law spouses in respect of the ownership, acquisition, management, administration, enjoyment, and disposition of property
6. The same rights to property and resources, whether titled or not, and inheritance, whether formal or customary
7. Equal rights with men to acquire, change, or retain their nationality. The State shall ensure in particular that neither marriage to an alien nor change of nationality by the husband during marriage shall automatically change the nationality of the wife, render her stateless or force upon her the nationality of the husband.

Anti-Sexual Harassment Act (R.A. No. 7877)

- Focused only on sexual harassment in work, education, and training institutions

Sexual harassment in a work-related environment

1. The sexual favor is made as a condition in the hiring or in the employment, re-employment, or continued employment of said individual, or in granting said individual favorable compensation, terms, conditions, promotions, or privileges
2. The refusal to grant the sexual favor results in segregating or classifying the employee, which in any way would discriminate, deprive, or diminish employment opportunities or otherwise adversely affect said employee
3. The above acts would impair the employee's rights or privileges under existing labor laws
4. The above acts would result in an intimidating, hostile, or offensive environment for the employee

Sexual harassment in an education or training environment

1. Against one who is under the care, custody or supervision of the offender
2. Against one whose education, training, apprenticeship or tutorship is entrusted to the offender
3. When the sexual favor is made a condition to the giving of a passing grade, or the granting of honors and scholarships, or the payment of a stipend, allowance or other benefits, privileges, or considerations
4. When the sexual advances result in an intimidating, hostile or offensive environment for the student, trainee or apprentice

Safe Spaces Act (R.A. No. 11313)

1. Streets and Public Places
2. Online Spaces
3. Workplaces
4. Educational and Training Institutions

Gender-Based Streets and Public Spaces Sexual Harassment

- The crimes of gender-based streets and public spaces sexual harassment are committed through any unwanted and uninvited sexual actions or remarks against any person, regardless of the motive for committing such actions or remarks.

Acts considered as gender-based streets and public spaces sexual harassment:

1. Catcalling
2. Wolf-whistling
3. Unwanted invitations
4. Misogynistic, transphobic, homophobic and sexist slurs
5. Persistent uninvited comments or gestures on a person's appearance
6. Relentless requests for personal details
7. Statements of sexual comments and suggestions
8. Public masturbation or flashing of private parts
9. Groping
10. Any advances, whether verbal or physical, that are unwanted and have threatened one's sense of personal space and physical safety

Gender-Based Sexual Harassment in Restaurants and Cafes, Bars and Clubs, Resorts and Water Parks, Hotels and Casinos, Cinemas, Malls, Buildings and Other Privately-Owned Places Open to the Public

- Restaurants, bars, cinemas, malls, buildings and other privately-owned places open to the public shall adopt a zero-tolerance policy against gender-based streets and public spaces sexual harassment
- These establishments are obliged to provide assistance to victims of gender-based sexual harassment by coordinating with local police authorities immediately after gender-based sexual harassment is reported, making CCTV footage available when ordered by the court, and providing a safe gender-sensitive environment to encourage victims to report gender-based sexual harassment at the first instance

Gender-Based Sexual Harassment in Public Utility Vehicles

- The Land Transportation Office (LTO) may cancel the license of perpetrators found to have committed acts constituting sexual harassment in public utility vehicles, and the Land Transportation Franchising and Regulatory Board (LTFRB) may suspend or revoke the franchise of transportation operators who commit gender-based streets and public spaces sexual harassment acts

Gender-Based Online Sexual Harassment

- Acts that use information and communications technology in terrorizing and intimidating victims through physical, psychological, and emotional threats, unwanted sexual misogynistic, transphobic, homophobic and sexist remarks and comments online whether publicly or through direct and private messages, invasion of victim's privacy through cyberstalking and incessant messaging, uploading and sharing without the consent of the victim, any form of media that contains photos, voice, or video with sexual content, any unauthorized recording and sharing of any of the victim's photos, videos, or any information online, impersonating identities of victims online or posting lies about victims to harm their reputation, or filing, false abuse reports to online platforms to silence victims

Qualified Gender-Based Streets, Public Spaces and Online Sexual Harassment

1. If the act takes place in a common carrier or PUV, including, but not limited to, jeepneys, taxis, tricycles, or app-based transport network vehicle services, where the perpetrator is the driver of the vehicle and the offended party is a passenger
2. If the offended party is a minor, a senior citizen, or a person with disability (PWD), or a breastfeeding mother nursing her child
3. If the offended party is diagnosed with a mental problem tending to impair consent
4. If the perpetrator is a member of the uniformed services, such as the PNP and the Armed Forces of the Philippines (AFP), and the act was perpetrated while the perpetrator was in uniform
5. If the act takes place in the premises of a government agency offering frontline services to the public and the perpetrator is a government employee

Gender-Based Sexual Harassment in the Workplace

1. An act or series of acts involving any unwelcome sexual advances, requests or demands for sexual favors or any act of sexual nature, whether done verbally, physically, or through the use of technology such as text messaging or electronic mail or through any other forms of information and communication systems, that has or could have a detrimental effect on the conditions of an individual's employment or education, job performance or opportunities
2. A conduct of sexual nature and other conduct based on sex affecting the dignity of a person, which is unwelcome, unreasonable, and offensive to the recipient, whether done verbally, physically, or through the use of technology such as text messaging or electronic mail or through any other forms of information and communication systems
3. A conduct that is unwelcome and pervasive and creates an intimidating, hostile or humiliating environment for the recipient: Provided, That the crime of gender-based sexual harassment may also be committed between peers and those committed to a superior officer by a subordinate, or to a teacher by a student, or to a trainer by a trainee
4. Information and communication system refers to a system for generating, sending, receiving, storing or otherwise processing electronic data messages or electronic documents and includes the computer system or other similar devices by or in which data are recorded or stored and any procedure related to the recording or storage of electronic data messages or electronic documents

Gender-Based Sexual Harassment in Educational and Training Institutions

- Every school must adopt and publish grievance procedures to facilitate the filing of complaints by students and faculty members
- Even if an individual does not want to file a complaint or does not request that the school take any action on behalf of a student or faculty member and school authorities have knowledge or reasonably know about a possible or impending act of gender-based sexual harassment or sexual violence, the school should promptly investigate to determine the veracity of such information or knowledge and the circumstances under which the act of gender-based sexual harassment or sexual violence was committed, and take appropriate steps to resolve the situation
- If a school knows or reasonably should know about acts of gender-based sexual harassment or sexual violence being committed that create a hostile environment, the school must take immediate action to eliminate the same acts, prevent their recurrence, and address their effects
- Once a perpetrator is found guilty, the educational institution may reserve the right to strip the diploma from the perpetrator or issue an expulsion order

Violence Against Women and their Children (R.A. No. 9262)

- Any act or a series of acts committed by any person against a woman who is his wife, former wife, or against a woman with whom the person has or had a sexual or dating relationship, or with whom he has a common child, or against her child whether legitimate or illegitimate, within or without the family abode, which result in or is likely to result in physical, sexual, psychological harm or suffering, or economic abuse
- Covers married, sexual or dating relationships
- The Regional Trial Court as a Family Court shall have original and exclusive jurisdiction over cases of violence against women and their children

Dating Relationship

- A situation wherein the parties live as husband and wife without the benefit of marriage or are romantically involved over time and on a continuing basis during the course of the relationship
- A casual acquaintance or ordinary socialization between two individuals in a business or social context is not a dating relationship

Battery

- An act of inflicting physical harm upon the woman or her child resulting to the physical and psychological or emotional distress

Kinds of Violence under VAWC:

1. Physical Violence
2. Sexual Violence
3. Psychological Violence
4. Economic Abuse

Physical Violence

- Acts that include bodily or physical harm

Sexual Violence

- An act that is sexual in nature, committed against a woman or her child

Psychological Violence

- Acts or omissions causing or likely to cause mental or emotional suffering of the victim

Economic Abuse

- Acts that make or attempt to make a woman financially dependent

Acts of violence against women and their children

1. Causing physical harm to the woman or her child
2. Threatening to cause the woman or her child physical harm
3. Attempting to cause the woman or her child physical harm
4. Placing the woman or her child in fear of imminent physical harm;
5. Attempting to compel or compelling the woman or her child to engage in conduct which the woman or her child has the right to desist from, or conduct which the woman or her child has the right to engage in, or attempting to restrict or restricting the woman's or her child's freedom of movement or conduct by force or threat of force, physical or other harm or threat of physical or other harm, or intimidation directed against the woman or child
6. Inflicting or threatening to inflict physical harm on oneself for the purpose of controlling her actions or decisions
7. Causing or attempting to cause the woman or her child to engage in any sexual activity which does not constitute rape, by force or threat of force, physical harm, or through intimidation directed against the woman or her child or her/his immediate family
8. Engaging in purposeful, knowing, or reckless conduct, personally or through another, that alarms or causes substantial emotional or psychological distress to the woman or her child
9. Causing mental or emotional anguish, public ridicule or humiliation to the woman or her child, including, but not limited to, repeated verbal and emotional abuse, and denial of financial support or custody of minor children of access to the woman's child/children

Protection Orders

1. Barangay Protection Order (BPO)
2. Temporary Protection Order (TPO)
3. Permanent Protection Order (PPO)

Barangay Protection Order (BPO)

- The protection order issued by the Punong Barangay ordering the perpetrator to desist from committing acts of violence against women and their children

Temporary Protection Order (TPO)

- The protection order issued by the court on the date of filing of the application after *ex parte* determination that such order should be issued
- A TPO shall be effective for thirty (30) days
- The court shall schedule a hearing on the issuance of a PPO prior to or on the date of the expiration of the TPO

Permanent Protection Order (PPO)

- Protection order issued by the court after notice and hearing
- Respondents' non-appearance despite proper notice, or his lack of a lawyer, or the non-availability of his lawyer shall not be a ground for rescheduling or postponing the hearing on the merits of the issuance of a PPO
- If the respondents appears without counsel on the date of the hearing on the PPO, the court shall appoint a lawyer for the respondent and immediately proceed with the hearing. In case the respondent fails to appear despite proper notice, the court shall allow ex parte presentation of the evidence by the applicant and render judgment on the basis of the evidence presented
- The court shall allow the introduction of any history of abusive conduct of a respondent even if the same was not directed against the applicant or the person for whom the applicant is made.
- The court shall, to the extent possible, conduct the hearing on the merits of the issuance of a PPO in one (1) day
- Where the court is unable to conduct the hearing within one (1) day and the TPO issued is due to expire, the court shall continuously extend or renew the TPO for a period of thirty (30) days at each particular time until final judgment is issued

Battered Woman Syndrome as Justifying Circumstance

- Victim-survivors who are found by the courts to be suffering from battered woman syndrome do not incur any criminal and civil liability

Prohibited Defenses under VAWC

- Being under the influence of alcohol, any illicit drug, or any other mind-altering substance shall not be a defense

Some Laws Protecting Minors:

1. R.A. No. 7658
2. R.A. 10917
3. Anti-Child Labor Law (R.A. No. 7610)

R.A. No. 7658

- General Rule: Children below fifteen (15) years of age shall not be employed
- Exceptions to the General Rule:
    a. When a child works directly under the sole responsibility of his parents or legal guardian and where only members of the employer's family are employed: *Provided, however,* That his employment neither endangers his life, safety, health and morals, nor impairs his normal development: *Provided, further,* That the parent or legal guardian shall provide the said minor child with the prescribed primary and/or secondary education
    b. Where a child's employment or participation in public entertainment or information through cinema, theater, radio or television is essential: *Provided,* The employment contract is concluded by the child's parents or legal guardian, with the express agreement of the child concerned, if possible, and the approval of the Department of Labor and Employment

Additional Requirements under the Second Exception:

1. The employer shall ensure the protection, health, safety, morals and normal development of the child
2. The employer shall institute measures to prevent the child's exploitation or discrimination taking into account the system and level of remuneration, and the duration and arrangement of working time
3. The employer shall formulate and implement, subject to the approval and supervision of competent authorities, a continuing program for training and skills acquisition of the child

R.A. No. 10917

- Any person or entity employing at least ten (10) persons may employ poor but deserving students, out-of-school youth (OSY) or, dependents of displaced or would-be displaced workers due to business closures, work stoppages, or natural calamities, intending to enroll in any secondary, tertiary, or technical-vocational institutions, fifteen (15) years of age but not more than thirty (30) years old, paying them a salary or wage not lower than the minimum wage for private employers and the applicable hiring rate for the national and local government agencies
- Students enrolled in the secondary level shall only be employed during summer and/or Christmas vacations, while the OSY and those enrolled in tertiary, vocational, or technical education may be employed at any time of the year
- Their period of employment shall be from twenty (20) to seventy-eight (78) working days only, except that during Christmas vacation, employment shall be from ten (10) to fifteen (15) days, which may be counted as part of the students' probationary period should they apply in the same company or agency after graduation
- Students employed in activities related to their course may earn equivalent academic and practicum or on-the-job training credits as may be determined by the appropriate government agencies

Payment of Wages

- 60% of the said salary or wage shall be paid by the employer in cash and 40% by the government also in the form of cash directly to the student or through financial institutions or other payment facilities, subject to the existing rules on procurement which shall be applicable in the payment for the student's tuition fees, books, and other education-related expenses, including their daily allowance for food and transportation in going to school
- Local government units (LGUs) may assume responsibility for paying in full the salary or wages
- For low-income LGUs employing SPES beneficiaries, the national government share may be increased up to 75% depending on the LGUs' financial capacity to pay the SPES beneficiaries.
- The national government share shall be paid within thirty (30) working days upon submission of the partner-employer or participating establishment of their report on payment of salary or wages, which shall be the basis of the portion of the salary or wages to be paid by the national government through the Department of Labor and Employment

Special Protection of Children Against Abuse, Exploitation and Discrimination Act (R.A. No. 7610)

- Children refers to person below eighteen (18) years of age or those over but are unable to fully take care of themselves or protect themselves from abuse, neglect, cruelty, exploitation or discrimination because of a physical or mental disability or condition

Child Prostitution and Other Sexual Abuse

- Children, whether male or female, who, for money, profit, or any other consideration or due to the coercion or influence of any adult, syndicate, or group, indulge in sexual intercourse or lascivious conduct, are deemed to be children exploited in prostitution and other sexual abuse

Child Trafficking

- Any person who shall engage in trading and dealing with children including, but not limited to, the act of buying and selling of a child for money, or for any other consideration, or barter, shall suffer the penalty of reclusion temporal to reclusion perpetua
- The penalty shall be imposed in its maximum period when the victim is under twelve (12) years of age

Obscene Publications and Indecent Shows

- Any person who shall hire, employ, use, persuade, induce, or coerce a child to perform in obscene exhibitions and indecent shows, whether live or in video, or model in obscene publications or pornographic materials or to sell or distribute the said materials shall suffer the penalty of prision mayor in its medium period
- If the child used as a performer, subject, or seller/distributor is below twelve (12) years of age, the penalty shall be imposed in its maximum period
- Any ascendant, guardian, or person entrusted in any capacity with the care of a child who shall cause and/or allow such child to be employed or to participate in an obscene play, scene, act, movie or show or in any other act covered by this section shall suffer the penalty of prision mayor in its medium period

Telecommuting Act (R.A. No. 11165)

- Telecommuting refers to working from an alternative workplace with the use of telecommunications and/or computer technologies

Telecommuting Program

- An employer in the private sector may offer a telecommuting program to its employees voluntarily, and upon such terms and conditions as they may mutually agree upon
- Such terms and conditions shall not be less than the minimum labor standards set by law, and shall include compensable work hours, minimum number of work hours, overtime, rest days, and entitlement to leave benefits. In all cases, the employer shall provide the telecommuting employee with relevant written information in order to adequately apprise the individual of the terms and conditions of the telecommuting program, and the responsibilities of the employee

Fair Treatment

- The employer shall ensure that the telecommuting employee are given the same treatment as that of comparable employees are given the same treatment as that of comparable employees working at the employer's premises
- The employer shall also ensure that measures are taken to prevent the telecommuting employee from being isolated from the rest of the working community in the company by giving the telecommuting employee the opportunity to meet with colleagues on a regular basis, and allowing access to company information.

Fair Treatment Inclusions

1. Receive a rate of pay, including overtime and night shift differential, and other similar monetary benefits not lower than those provided in applicable laws and collective bargaining agreements
2. Have the right to rest periods, regular holidays, and special nonworking days
3. Have the same or equivalent workload and performance standards as those of comparable workers at the employer's premises
4. Have the same access to training and career development opportunities as those of comparable workers at the employer's premises, and be subject to the same appraisal policies covering these workers
5. Receive appropriate training on the technical equipment at their disposal, and the characteristics and conditions of telecommuting
6. Have the same collective rights as the workers at the employer's premises, and shall not be barred from communicating with workers' representatives

Data Protection

- The employer shall be responsible for taking the appropriate measures to ensure the protection of data used and processed by the telecommuting employee for professional purposes
- The employer shall inform the telecommuting employee of all relevant laws and company rules concerning data protection
- The telecommuting employee shall ensure that confidential and proprietary information is protected at all times

Night Workers (R.A. No. 10151)

- Night worker means any employed person whose work requires performance of a substantial number of hours of night work which exceeds a specified limit

Health Assessment

- Workers shall have the right to undergo a health assessment without charge and to receive advice on how to reduce or avoid health problems associated with their work:
  a. Before taking up an assignment as a night worker
  b. At regular intervals during such an assignment
  c. If they experience health problems during such an assignment that are not caused by factors other than the performance of night work

*Except a finding of unfitness for night work, the findings of such assessments shall not be transmitted to others without the workers' consent and shall not be used to their detriment

Transfer of Night Workers

- Night workers who are certified as unfit for night work, due to health reasons, shall be transferred, whenever practicable, to a similar job for which they are fit to work
- If such transfer to a similar job is not practicable, these workers shall be granted the same benefits as other workers who are unable to work, or to secure employment during such period
- A night worker certified as temporarily unfit for night work shall be given the same protection against dismissal or notice of dismissal as other workers who are prevented from working for reasons of health

Night Work Schedules

- Before introducing work schedules requiring the services of night workers, the employer shall consult the workers' representatives or labor organizations concerned on the details of such schedules and the forms of organization of night work that are best adapted to the establishment and its personnel, as well as on the occupational health measures and social services which are required. In establishments employing night workers, consultation shall take place regularly